

		Defendant moves to strike “and reasonable attorneys fees” from page 8, line 21, prayer item no. 5 of the First Amended Complaint. The court disregards Su’s argument concerning the claim for restitution at prayer item no. 3, which is raised for the first time in its reply. A moving party is required to state the grounds upon which a motion is made in its notice of motion. (Code Civ. Proc., § 1010.) Plaintiffs did not file an opposition to this motion. Instead, Plaintiffs filed an opposition to defendant Providence St. Jude Medical Center’s motion to strike, which is not scheduled for hearing until 9/18/2026. (See ROA 44.) Each party to a lawsuit must pay his or her own attorneys fees, unless a statute or contract provides otherwise. (Code Civ. Proc., § 1021; <i>Samantha C. v. State Dept. of Developmental Services</i> (2012) 207 Cal.App.4th 71, 78.) Su to give notice.
11	Morehead vs. Strawn 30-2025-01478447-CU-MM-CJC	Demurrer to First Amended Complaint Defendants Jon Bradley Strawn, MD and Scultura Plastic Surgery’s unopposed demurrer to the First Amended Complaint (FAC) is SUSTAINED with 10 days leave to amend for all the reasons argued in the demurrer. Motion to Strike Portions of First Amended Complaint Defendants John Bradley Strawn, MD and Scultura Plastic Surgery’s unopposed motion to strike is GRANTED with 10 days leave to amend for all the reasons argued in the motion. Clerk to give notice.
12	Bodde vs. Pineda 30-2025-01459968-CU-OR-CJC	Motion for Summary Adjudication Plaintiff Edward H. Bodde’s motion for summary adjudication against defendant Alba Luz Pineda for an interlocutory judgment for partition is DENIED. Plaintiff’s Evidentiary Objections to Defendant’s Evidence are OVERRULED. Plaintiff’s Request for Judicial Notice is GRANTED. The grant deeds are sufficient to make a prima facie showing of the passage of title. Plaintiff has met his initial burden.

		On his shifted burden, Defendant has shown a triable issue of material fact. Defendant does not dispute signing the 2021 Trust Transfer Deed but has submitted evidence to show it was not a knowing, genuine and voluntary transfer of any ownership right. Although the 2021 Trust Transfer Deed recites Plaintiff and Defendant were “wife and husband,” Defendant declares Plaintiff and Defendant were in a romantic relationship but never married. (Pineda Decl., ¶ 7.) Notably, Plaintiff also does not dispute they were never married. (Bodde Decl., ¶ 3.) Defendant states in or about 2021 and 2022, she wanted to refinance the subject property because she hoped to purchase other property in Texas. (Pineda Decl., ¶ 4.) Defendant states Plaintiff told her she needed a co-signer to qualify for the refinance, and he agreed to help as a co-signer. (Pineda Decl., ¶ 5.) Plaintiff was only supposed to help Defendant with the refinance and she did not agree he would receive a one-half ownership interest in the Subject Property. (Pineda Decl., ¶ 6.) Defendant was the person primarily handling the refinance paperwork and communications, and when it came time to sign the refinance papers, Plaintiff presented Defendant with a stack of documents. (Pineda Decl., ¶¶ 7, 10.) Defendant did not understand a trust transfer deed adding him to title was included in that stack. (Pineda Decl., ¶ 10.) Defendant’s evidence is sufficient to create triable issues as to concealment, mistake, lack of donative or contractual intent, consideration, and ownership interest in the subject property. To the extent Plaintiff contends Defendant’s claims for fraud, cancellation of instrument, and constructive fraud as alleged in the Cross-Complaint are barred by the statute of limitations, Plaintiff’s notice of motion does not seek summary adjudication as to any causes of action alleged in Defendant’s Cross-Complaint. The only issue identified in the notice is for an interlocutory judgment for partition as alleged in Plaintiff’s Complaint. The court declines to rule on Plaintiff’s contention statute of limitations bars Defendant’s claims alleged in the Cross-Complaint. Defendant to give notice.
13	Pacheco vs. Guardian Storage Centers, LLC	Motion to Strike Portions of First Amended Complaint